Revision Date:
May 1, 2025

Background:
The Immigration Reform and Control Act (IRCA) of 1986 mandates that a noncitizen must be admitted for permanent residence or permanently residing in the United States (U.S.) under the color of law (PRUCOL) to be eligible for CalWORKs benefits (federal or state). Verification of eligible noncitizen status is required prior to the receipt of aid. The IRCA also requires that the noncitizen status be verified with the United States Citizenship and Immigration Services (USCIS) through the Systematic Alien Verification for Entitlements (SAVE) system.

Purpose:

The purpose of this revision is to provide guidance regarding CalWORKs eligibility for Compact of Free Association (COFA) citizens of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau. Effective March 9, 2024, individuals who lawfully reside in the U.S. in accordance with the COFA agreements are now considered qualified citizens and are eligible for Temporary Assistance for Needy Families (TANF).

Policy:
Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA)
Title IV of the PRWORA of 1996, Public Law 104-193, prohibits "qualified noncitizens" not meeting any exception criteria from receiving any federal means-tested public benefit, including CalWORKs, for a period of five years from the date they acquire their "qualified noncitizen" status.

CalWORKs will continue to allow all immigrants meeting the eligibility criteria to receive benefits. The State of California implemented state only funded programs to aid certain noncitizens who are not eligible to federally funded CalWORKs.

Eligibility Requirements
To be eligible to CalWORKs benefits (federal or state), a noncitizen must be a California resident who meets the definition of a "qualified noncitizen" as either lawfully admitted for permanent residency or meeting the requirements of PRUCOL. Qualified noncitizens are:

- Lawfully admitted for permanent residence.
  - Legal Permanent Residence (LPR) Status for CalWORKs eligibility purposes does not expire, even if the I-94 or I-55I has reached an expiration date (except for Conditional Entrants), as long as the SAVE response does not indicate the individual is under order of deportation.
  - For Sponsored LPRs, refer to CalWORKs Program Guide (CPG) section 42-400.F Sponsored Noncitizens.
- Refugees admitted under Section 207(c) after March 31, 1980.
- Immigrants granted political asylum by the attorney general under Section 208.
  - Under this category, immigrants must be **granted** asylum. Proof of an application for asylum is not sufficient unless otherwise stated by the USCIS.
- Immigrants who are granted temporary parole status by the attorney general under Section 212(d)(5) of the Immigration and Nationality Act (INA) regardless of the time they are paroled, if otherwise eligible.

- Immigrants granted with the "DT" code which means parole was granted at the port of entry or district office. Eligibility begins when parole is granted and ends at the end of the parole period unless the customer acquires another qualified noncitizen status.
  - Immigrants with the "DT" code and parolees pursuant to section 212(d)(5) **with at least one year** are eligible for federal TANF assistance if they meet all other program eligibility requirements.
  - Immigrants with the "DT" code and a parole term of **less** than one year are eligible to state-only CalWORKs if they meet all other program eligibility requirements.
- Cuban/Haitian entrants as defined in section 501(e) of the Refugee Education Assistance Act of 1980 as indicated below:
  - A national of Cuba or Haiti who is the subject of removal, deportation or exclusion proceedings under the INA and with respect to whom a final, non-appealable, and legally enforceable order of removal, deportation or exclusion has not been entered.
    Note: Cuban/Haitian noncitizen eligibility to CalWORKs is dependent upon the initial immigration designation received when admitted into the U.S. Expired status is not relevant for the purposes of determining CalWORKs eligibility.
- Amerasian immigrants as described in PRWORA, section 402(a)(2)(A)(I)(V).
- Citizens of freely associated States- Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau lawfully residing in the U.S.
- Noncitizens granted indefinite voluntary departure in lieu of deportation.
- Victims of trafficking, domestic violence or other serious crimes under Welfare and Institutions Code (WIC) section 18945, refer to CPG 70-100.A.
- Noncitizens granted an indefinite stay of deportation.

<u>Federally Qualified Noncitizens</u>
Federally qualified noncitizens are those who were lawfully admitted to the U.S. prior to August 22, 1996 (effective December 26, 2007, for holders of Special Immigrant Visa's) and meet a qualified noncitizen status listed above.

Qualified noncitizens admitted on or after August 22, 1996, are not eligible for federally funded benefits for five years from the date that their qualified noncitizen status is obtained unless they meet one of the following exception criteria:

- Lawfully admitted noncitizens who have worked 40 qualifying quarters under Title II of the Social Security Act or can be credited with such qualifying quarters from a natural, step or adoptive parent, current spouse, or former spouse (if the marriage ended by death), unless they also received a federal means-tested public benefit during a qualified quarter, after January 1, 1997. Federal means-tested public benefits have been defined by the state as only CalWORKs/Temporary Assistance to Needy Families (TANF), CalFresh, and/or Supplemental Security Income (SSI). Under section 435 of the law, a qualifying quarter includes one worked by a parent of a noncitizen while the noncitizen was under 18 and a quarter worked by a spouse during their marriage if the noncitizen remains married to the spouse or the spouse is deceased.
- Granted asylum under section 208 of the INA.
- Admitted as a refugee under section 207 of the INA.
- Granted a withholding of deportation or indefinite voluntary departure under section 243(h) or 241(b)(3) of the INA.

- Cuban/Haitian entrants under section 501(e) of the Refugee Education Assistance Act of 1980.
- Amerasian immigrants, defined as a noncitizen admitted to the U.S. under section 402(a)(2)(A)(I)(V) of the INA.
- U.S. Military Status.
  - A veteran who was honorably discharged for reasons other than non-citizenship.
  - Active duty (other than active duty for training) in the Armed Forces of the U.S.
- The spouse or unmarried dependent child of these veterans or active-duty personnel.

State Only

Qualified noncitizens who are not federally eligible are eligible under the state only program when all the following apply:

- The noncitizen entered the U.S. on or after August 22, 1996.
- The noncitizen meets the definition of a "qualified noncitizen".
- The noncitizen does not meet the exception criteria for federally funded benefits and the request for benefits is within the first five years of the qualified noncitizen status.
- All other eligibility requirements are met.

Once the aided individual has been in the U.S. for five years or acquires citizenship, their eligibility will be reassessed for federal eligibility. All regulations, procedures, and requirements are the same in state only and federal CalWORKs program including fleeing felons, minor parent, mandatory inclusion, and employment services.

Note: Refer to the CalWORKs Aid Types in CPG section 45-200 for the appropriate aid codes to be used when an Assistance Unit contains a noncitizen who is receiving state only CalWORKs.

Nicaraguan Adjustment and Central American Relief Act (NACARA) Noncitizens

NACARA noncitizens are admitted as LPRs to the U.S. and are eligible to the CalWORKs program. They are identified by one of five codes on their I-551 document (Permanent Resident Card). These codes are:

- NC-5 (admitted to the U.S. through normal immigration).
- NC-6 (granted adjustment of their status to LPR under NACARA).
- NC-7 (individual is the spouse of a noncitizen with NC-6 code).
- NC-8 (minor child or unmarried son/daughter of a noncitizen with NC-6 code).
- Z-15 (individuals who obtained their status through the courts).

As NACARA was enacted after the PRWORA, the five-year period applies to individuals lawfully admitted for permanent residence under NACARA status. The five-year period starts from the date these individuals acquired NACARA status. Therefore, if otherwise eligible, these individuals are *state only* funded cases until the five-year period has passed.

Special Immigrant Visa (SIV) Holders

Displaced persons from Iraq and Afghanistan have been and are being admitted to the U.S. with SIVs. These Iraqis and Afghans were employed by or assisted the U.S. Armed Forces. Iraqis/Afghans who have been issued SIVs are eligible for federally funded refugee benefits and services, entitlement

programs, and other benefits and services to the same extent as persons who are admitted to the U.S. as refugees, effective their Date of Entry (DOE).

CalWORKs Program Eligibility for Afghan (SIV Holders)

Afghan SIV holders and their eligible family members may receive federally funded CalWORKs. These Afghan SIV holders meet the CalWORKs eligibility requirement of PRUCOL. Examples of Afghan SIV holder documentation includes:

Applicant	Documentation
Principal Applicant Afghan Special Immigrant.	Afghan passport with an immigrant visa stamp noting that the individual has been admitted under Immigrant Visa (IV) Category SQ1 or SI1.
Spouse of Principal Applicant Afghan Special Immigrant.	Afghan passport with an immigrant visa stamp noting that the individual has been admitted under IV Category SQ2 or SI2.
Unmarried Child Under 21 Years of Age of Afghan Special Immigrant.	Afghan passport with an immigrant visa stamp noting that the individual has been admitted under IV Category SQ3 or SI3.
Principal Applicant Afghan Special Immigrant Principal Adjusting Status in the U.S.	DHS Form I-551 (LPR Card) or Afghan passport showing Afghan, with an IV code of SQ6 or SI6.
Spouse of Principal Applicant Afghan Special Immigrant in SI6 Category.	DHS Form I-551 or Afghan passport showing Afghan nationality with IV code of SQ7 or SI7.
Unmarried Child Under 21 Years of Age of Afghan Special Immigrant in SI6 Category.	DHS Form I-551 or Afghan passport showing Afghan with an IV code of SQ9 or SI9.

Refugee Resettlement Programs (RRP)

Specific RRP benefits and services available to SIV holders include Refugee Cash Assistance (RCA), Refugee Support Services (RSS), Targeted Assistance (TA) employment and training services, and ORR discretionary grant services. These RRPs are administered by Resettlement Agencies (RAs) that assist the refugee population (includes SIV holders) to resettle in the U.S. SIV holders who are ineligible for CalWORKs will be referred to an RA to be evaluated for RRP eligibility. The current RA that issues RCA in the County of San Diego (COSD) is Catholic Charities. Refer to CPG section 69-205 for RCA eligibility information.

Ineligible Noncitizens

A noncitizen with no lawful presence or who declares or presents documentation that they are lawfully present for *temporary* residency is not eligible to federal or state CalWORKs (unless granted PRUCOL). This includes:

- Visitors.
- Persons in the U.S on business or for religious purposes.
- Tourists.
- Students.
- Undocumented immigrants unlawfully present in the U.S.
- Immigrants granted Temporary Protected Status only.

Procedure:
Desk Aid 200 - Cuban/Haitian Entrants
Eligibility Operations Processing Guide -Systematic Alien Verification for Entitlements (SAVE)
Refugee Eligible Populations Desk Aid

Program Impact/s:
N/A

References:
EAS 42-430, 42-431, 42-433
ACL No. 98-65, 08-35, 09-39, 10-28, 24-27, 24-95
ACIN No. I-70-04, I-14-23

Sunset Date:
This policy will be reviewed for continuance by May 31, 2028

Approval for Release:

5-23-25

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